6/9/2021 - National Grid NY - 19-G-0309/0310

STATE OF NEW YORK
PUBLIC SERVICE COMMISSION

CASE 19-G-0309 - Proceeding on motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a national Grid NY of Gas Service.

CASE 19-G-0310 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan gas East Corp. d/b/a National Grid for Gas Service.

CASE 18-M-0270 - Petition for Approval, Pursuant to Public Service Law, Section 113(2), of a Proposed Allocation of Certain Tax Refunds Between Keyspan Gas East Corp. d/b/a National Grid and Ratepayers.

PUBLIC STATEMENT HEARING

DATE: June 9, 2021 at 2:01 p.m.

LOCATION: WebEx

BEFORE: ALJ MAUREEN F. LEARY
ALJ JAMES COSTELLO

Reported by Becky Foster

A.L.J. LEARY: Good afternoon everyone. We will now begin the public statement hearing session. Before I call the case, however, I would like to ask our stenographer, Ms. Foster, if she is ready to go on the record. Ms. Foster? I think Mr. White -- yeah, there she is.

THE REPORTER: There you go.

A.L.J. LEARY: Ms. Foster?

THE REPORTER: Yes, you are on the record.

A.L.J. LEARY: Perfect. Okay. We're on the record. I call Case 19-G-0309, Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of the Brooklyn Union Gas Company, Doing Business as National Grid New York for Gas Service, Case 19-G-0310, Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Keyspan East -- sorry, Keyspan Gas East Corporation, Doing Business as National Grid and Case 18-M-0270, a Petition for Approval, Pursuant to Public Service Law Section 113(2), of a Proposed Allocation of Certain Tax Refunds Between Keyspan Gas East Corporation and Ratepayers.

Good afternoon everyone. My name is

Maureen Leary. I'm an administrative law judge with the Department of Public Service, Office of Hearings and Alternative Dispute Resolution. I am joined this afternoon by Judge James A. Costello. We have been presiding over these rate cases since their inception in early 2019 and we will presiding over this public statement hearing this afternoon, as well as the one scheduled for this evening.

We are joined today by Commissioner Diane Burman. Welcome Commissioner Burman. Would you like to take this opportunity to address the hearing participants?

COMMISSIONER BURMAN: Thank you so much, Judge. As Judge Leary said, my name is Diane Burman. I've been a commissioner since 2013. I find it very important to be listening to as many public statement hearings as I can. This one virtually, I will be listening to. My role here is, really as a listener. I'm to bring back what I hear to the Commission. I appreciate the opportunity and thank you so much, Judge.

A.L.J. LEARY: Thank you, Commissioner Burman. Thank you very much for being here. This is a virtual public statement hearing that was scheduled

by the Secretary to the Public Service Commission in a May 21st, 2021 public notice, which set forth the dates and times for the two hearings that will be held today on the joint proposal that contains a settlement agreement among certain parties to the case. We will also be having, in addition to this afternoon's public statement hearing, one this evening at 6 p.m. That's when the information session begins and at 7, a public statement hearing will start.

I want to just go over quickly, the nature and the purpose of a public statement hearing for those of you who are new to the process and I apologize to those of you who have been here multiple times. This is a hearing in which members of the public provide comments for the Commission's consideration. And, as many of you know, the Commission ultimately must decide if the future rates and terms of service set forth in the joint proposal, are quote, just and reasonable. That's the applicable criteria under the Public Service Law.

This is not an evidentiary hearing, in which witnesses are cross examined and evidence admitted. It's also not a question and answer

session. It's a listening session and it's designed, really just to hear from members of the public. The statements made today by the public, will become part of the record for the Commission's consideration in these cases, as the Commission reviews the joint proposal.

And, as you may have gathered, a court reporter, Ms. Foster, is transcribing the statements made today and that transcript will be prepared and included in the official record of the proceeding. It will be available on the Department's web page under the Document and Matter Management System database. I'll give you more information on that a little bit later.

I want to briefly provide some guidance to registered speakers and review the hearing protocols. So, when your name is called, it's very important that you state and spell your name for the court reporter very clearly. When you're giving your statement, kindly speak slowly, so that the court reporter can accurately capture your statement for the record. If you are speaking on behalf of an organization, please clearly identify the name of that organization. You may also have to spell the

organization's name for the court reporter.

If I call a registered speaker but that speaker does not respond immediately, we will have to skip you for purposes of saving time and we will call you again after all other speakers have been called. You should have only one audio input from one device on or we may experience problems with feedback when your line is unmuted after your name is called to deliver your statement. If that happens, we may have to terminate your connection but we will provide you with other ways to comment.

Please be mindful that there are many, many speakers registered today and kindly limit your comments to three minutes. Any lengthy comments, should be summarized orally today but then a fuller, written statement can be submitted to the Secretary by email, by mail or by an electronic filing. And, again there -- I will go over -- actually what you're seeing if you're participating on WebEx, you will see the other ways to comment and provide those very comments that will be longer, perhaps, than we have time for today.

Any speaker who has provided comments at this afternoon's session, should not repeat those

comments tonight at the evening session. It's sufficient that your comments are noted one time, in one transcript. If you're having technical difficulties, you probably noted the 800 number we provided to call. Unfortunately, we cannot guarantee your ability to connect and make a comment today if you have technical difficulties but there are, again, other ways to comment. That 800 number is 800-342-3330.

So, here are the protocols. When I call your name, I will begin with those who are participating by telephone. When I call you name, please press star three on your phone. That way, the host will recognize your line and unmute it. Don't forget, if you have muted your own telephone, you have to unmute it before you will be heard. We will indicate that your line has been unmuted and that you can proceed with your statement. Again, state and spell your name for the record. Very important, when you have completed your public comment, you must then press star three again on your telephone.

Now, for those of you who are participating by -- by WebEx, when your name is called, your line will be unmuted by the host. And,

don't forget, if you've muted your own line on the computer, please remember to unmute. State and spell your name. We will confirm that we can hear you and direct you to proceed with your statement.

There are other ways to comment, as I indicated and you did see and you will again see on the screen, the other ways to comment. They can be submitted electronically, by phone or by email to the Secretary. Don't forget, you must enter the case number. Only one case number is fine; 19-G-0309, 19-G-0310. In order to reach the appropriate case, if you do submit a comment in one of these three ways, please do not forget to identify the case number.

The last thing I want to mention, is the Department's website provides access to all kinds of information that has been filed in these cases, should you be interested in taking a look at it. Anything that is part of the public record in these cases, will be found on that website under this case name and that includes testimony, exhibits, our rulings and all of the public comments received to date, as well as the transcripts of this proceeding.

I'm now going to move to call registered speakers by telephone, to provide

statements and I'm going to begin with Andrew Epstein, Chief of Staff for New York Assembly Member, Emily Gallagher.

Mr. Epstein, Mr. White will indicate when your line has been unmuted. I'm not seeing Mr. Epstein on the attendee list.

MR. WHITE: Neither am I, Your Honor. Mr. Epstein, if you're present and you've called in, can you please hit star three on your telephone and it'll raise your hand and I can locate you? I'd appreciate it, thank you.

A.L.J. LEARY: Okay. We're going to move on. I suspect Mr. Epstein may come in in a few moments or be attending this evening's session. On the telephone, Judith Canepa -- Canepa, I'm sorry if I -- from SANE Energy. I'm sorry I'm not saying your name correctly. Would you please press star three on your telephone line?

MS. CANEPA: Hi, this --

MR. WHITE: Your line is available.

MS. CANEPA: -- yes. I'm Judith Canepa, C-A-N-E-P-A, SANE Energy Project. I address my comments not only to the Public Service Commission but also to the Executive in Chief of our State,

Governor Cuomo. Early -- earlier in the -- in the ... when he was first elected, New York was being mapped and targeted for fracking in the face of growing opposition against widespread fracking. The Department of Environmental Conservation announced a test of that extraction process in the Southern Tier counties. The people throughout New York State united and said no, no sacrifice communities.

Apparently our voices were heard. This is a no frack State. But, still in those eleven years, we've seen the results of the heedless, continued headlong embrace of fossil fuels; one massive and devastating super storm, days like we had this week of deadly heat, worse even in Ulster County than Kings County, glaciers caverning in the Arctic in a terrifying ... where New Yorkers can't see for ourselves but we are paying attention. Governor Cuomo, we're more informed and united across State -- across the State than we were in 2010. The metastasis of the fracking industry, has had the unintended consequences of connecting us, as well.

So, when National Grid slapped a moratorium on new gas hook ups, you slapped a fine on National Grid. For a brief moment, while celebrating

your C.L.C.P.A., we thought we might be seeing a leader leading in the fight for our lives and our children. Undeterred, National Grid had already cowardly begun to lay a racist pipeline through the most vulnerable communities in Brooklyn. When this hidden project was exposed, National Grid made false claims of having consulted those communities. This lie enraged and further galvanized the communities.

The utility filed for rate increases, as they do, to fill the pockets of investors and executives, as they do. What are you going to do about that, Governor Cuomo and Public Service Commission? Will you reward this rapacious, mendacious company? What's the consequence of that fine that was levied? We're not the same people who voted for you in 2010, even if many of us are still around. There's a ground swell of angry, voters who refuse to pay the bill for that pipeline and the secret charges National Grid expects to sneak on to their bills, to carry the most dangerous products through New York City streets and into Long Island, unless you stop them.

National Grid would like to get a permit, to send liquefied natural gas trucks that's

cooled to 260 degrees below zero and compress natural gas, pressured 1,000 times into the streets of New York. Please so no, Public Service Commission. Thank you.

A.L.J. LEARY: Thank you very much. Our next call, Kim Fraczek. Ms. Fraczek, are you participating by telephone? If so, please press star three.

MR. WHITE: Kim, now you're unmuted.

MS. FRACZEK: Thank you so much. I had requested to switch to the six p.m. hearing but I know my colleague, Katherine Thompson, has to get off the call early, so I wonder if we could switch to Katherine right now and then I can speak at six?

A.L.J. LEARY: That's fine. I don't have her on my list, so I have no idea who you're talking about.

MR. WHITE: I -- I've -- I've unmuted Katherine. Go ahead Katherine.

MS. FRACZAK: Thank you so much.

MR. WHITE: Sure.

MS. THOMPSON: Hi everybody. Can you hear me?

A.L.J. LEARY: Please state and spell

your last name for the record.

MS. THOMPSON: Katherine Thompson, K-A-T-H-E-R-I-N-E Thompson, T-H-O-M-P-S-O-N. Did you get that?

A.L.J. LEARY: Yes, go ahead, proceed. Thanks.

MS. THOMPSON: Hello, my name is Katherine Thompson and I have lived in Greenpoint for over 25 years. I've raised three children here, who are now grown up. When you live in Greenpoint, you become an activist because we have to fight tooth and nail for environmental justice. Our community sits on top of a super fund site, the largest oil spill -- spill on the Eastern seaboard, the largest in the Western hemisphere. We are inundated with the legacy of toxic industrial pollution from manufactured gas to ... Toluene oil paint. We have one of the lowest ratios of open space per capita in New York City. We have very high incidents of cancer and autoimmune issues.

In 2009, New York City declared a climate emergency and when I found out about the National Grid ... pipeline and the Greenpoint L.N.G. expansion, I joined the Brooklyn Pipeline Coalition

to fight against fossil fuel infrastructure expansion right here in my neighborhood, in the industrial armpit of New York City.

Once this infrastructure is built, it will fulfill its destiny to use, to expand and transport the use of extracted poisonous fossil fuels, which are raising the temperature of this earth, causing human rights catastrophes here and all over the globe. You see, all of us here in Brooklyn, New York City, on the planet Earth, are in a climate emergency but I ask you, the deciders, where is your urgency? I joined the rate case because I wanted to engage with the process of how a public service commission decides to charge the public and spend our money, which we as ratepayers pay to the Commission.

I participated in the confidential settlement negotiations. I had experienced the lack of urgency, that the public has in this process. I want to say, none of this is affordable. We cannot afford to wait to move off of fossil fuels. The planet and our children's future cannot afford to wait for the Public Service Commission to put the public ahead of profit. As a ratepayer, I don't want to be complicit in funding extracted, poisonous

fossil fuel infrastructure. I am refusing to pay for it and so I'm going on a National Grid fuel strike.

Investments in new fracked gas projects go against our climate law and it will be us, the customers, who get stuck with the bill, when these projects become stranded assets. This will be soon and this is bad business. As a National Grid customer, I refuse to pay for National Grid's racist Brooklyn pipeline or any other fracked gas project. The people need more power to decide the future of energy investment. We want to secure the future for our children and planet. I read the newspapers, listen to the reports of about the climate emergency and outlook for the future and the future of our planet and I am so sad. I am so angry and often I feel so helpless. That's why ... in Greenpoint, with our coalition of thousands of people and organizations. We have built a movement, which is so much bigger than I am and together we are fighting hard to disrupt this horrible train wreck of fossil fuel economy. But, it is time that the P.S.C. and our Government officials, who we pay to defend the rights of the people to determine the future of energy investment, the rate hike proposal ... tens of

thousands of public comments that were submitted in this proceeding and in the proceeding investigating National Grid's harmful 2019 moratorium.

Governor Cuomo and the Public Service Commission, I call upon you to reject any rate hike that forces customers into complicity to pay for the widely opposed North Brooklyn Pipeline and fracked gas projects like L.N.G. and Greenpoint and C.N.G. on Long Island, through their sneaky surcharges. As a National Grid customer, I refuse to pay for National Grid's racist Brooklyn Pipeline or any other grass -- gas -- fracked gas project. The rate hike proposal between National Grid and the Department of Public Service, fails the public interest and instead, invests hundreds of millions of dollars in unsafe and unneeded projects.

I want to know why is geothermal technology not being employed right now as an actual, viable alternative today. Looking at it, is not enough. Is it because it takes National Grid and Con Edison out of the equation? Are they beholden to the profit of their private shareholders? This makes me so angry because the Public Service --.

A.L.J. LEARY: Ms. Thompson -- Ms.

Thompson, I'm going to ask you wrap up.

MS. THOMPSON: Okay. I'm almost done. Thank you very much. This makes me so angry because the Public Service Commission should be protecting the public, not their profits. Our money should be used to invest in a hundred percent renewable and sustainable energy. This can be done and it must be done stat. Thank you very much.

A.L.J. LEARY: Thank you, Ms. Thompson. Our next call, Bob Wyman. Mr. Wyman? I see Mr. Wyman's participating by phone. His name is spelled out, so he just needs to be unmuted. Okay. Let's see, Ms. Wasser?

Thank you very much, Ms. ... Our next call, I'm beginning to move to the electronic participants who will be on WebEx, I call Alvin Pena. Alvin Pena, your line is unmuted Mr. Pena.

MR. PENA: Okay. Hi, can you hear me?

A.L.J. LEARY: Yes.

MR. PENA: In February of 2020, State senator --

A.L.J. LEARY: I'm sorry, excuse me Mr. Pena, would you state and spell your last name for the court reporter?

MR. PENA: Sorry, my name is Alvin Pena, A-L-V-I-N P-E-N-A. I'm speaking on behalf of State Senator, Julia Salazar. I'm starting my statement now. In February of 2020, Senator Salazar and 20 other elected officials, submitted their comment in this proceeding, strongly opposing any rate hike, that would face -- that would force consumers to pay for the North Brooklyn Pipeline.

The message was clear. The North Brooklyn Pipeline would harm the health and safety of predominately black or brown working class communities. We shouldn't be prolonging the inevitable. The future of fossil fuel infrastructure is one that is nearing its end -- the end of the time. Our climate demands, that we must have ... because there is no Planet B.

Over a year later while other communities are still struggling with the economic and health impacts of COVID -- COVID, National Grid wants their bills to go up even more to pay the almost 129 million they spent on the pipeline in 2021. As we did in 2020, we strongly opposed any rate hike but -- but especially one for a pipeline that the community has vehemently opposed. We also

oppose any funds going to expand -- extend the life of the Greenpoint L.N.G. storage depot. Local communities around this facility, have long suffered for decades from industrial contamination. It's time for some healing to take place from the alternative -- from the environmental injustice in this area.

We're asking the Governor of New York, Cuomo, and the P.S.C. to reject this rate hike for the North Brooklyn Pipeline and other fracked gas projects. We are demanding a proposal that brings environmental justice to our communities and listens to the climate ... and that aligns with our climate goals of the C.L.C.P.A. That's all.

A.L.J. LEARY: Thank you very much, Mr. Pena. I next call Teddy ... Knower, K-N-O-W-E-R. Mr. White, I don't see that person on my screen. Do you see --

MR. WHITE: No, Your Honor, I'm not either but they might have called in. So, if you have called in Teddy, please hit star three and we will see your hand raised and be able to unmute you. Thank you, Your Honor.

A.L.J. LEARY: Thanks. I'm not seeing any raised hands either, so I'm moving on. Next, I'm

calling Sandy Rens.

MR. WHITE: No -- no -- no -- is Sandy available. Sandy, if you're available, please hit star three on your phone, if you've called in.

A.L.J. LEARY: I think we got one.

MR. WHITE: I think someone has raised their hand but it's not Sandy. Should I -- should I unmute that person or --

A.L.J. LEARY: No. Yeah, we're -- whoever has raised their hand, unless you are the person whose name has been called, I'm going to go in the order of the registrations. So, kindly --

MR. WHITE: They -- they lowered their hand, Your Honor.

A.L.J. LEARY: -- so, kindly be patient, thanks. Next, I'm calling Nosier Nicholas -- Nosier Nicholas. These folks have registered electronic too -- electronically participating and if you've called in, please press star three. Moving on, Michael Davis; calling Michael Davis. I see Mr. Davis listed. Can you unmute his line?

MR. WHITE: Yes. Go ahead Mr. Davis. Thank you for your patience.

MR. DAVIS: Hi, my name is Michael

Davis. That's D-A-V-I-S. I'm a native New Yorker. I live in Brooklyn, New York. I joined the rate case as a very concerned citizen. From the B.B.C., the amount of greenhouse gas in the atmosphere reached record levels in 2020, hitting 417 parts per million in May. The last time greenhouse gas levels exceeded 400 part per million, was around four million years ago, during the Paleocene Era, when global temperatures were two to four degrees centigrade warmer and sea levels were 33 to 82 feet higher than they are now. There was no ice. This would be quite sufficient to completely flood the M.G. facility in Greenpoint, along with much of New York City.

We are already at the edge of a two degree centigrade increase. These rises are due to the greenhouse gas we have already pumped into the atmosphere. Additional greenhouse gas, which is currently being added, will obviously increase the temperature further, possibly as high as five to seven degrees by 2022.

New York State passed the Climate Leadership and Community Protection Act in 2019 but we are still going backwards. In the midst of this emergency, we are forced to rely on the P.S.C. to

regulate energy utility revenues, the granting of which encourages these corporations to build more fossil fuel infrastructure.

The utility in question, National Grid, responded to a denial of the ... Pipeline, by instituting a denial of service strategy and gas output got moratorium to punish the City. In a fact, National Grid held a portion of the economy hostage. They justified this act of extortion, by claiming a gas shortage. When the State reacted by threatening their license, the gas magically materialized. This is who National Grid is. The gas has not dematerialized since and anyone can see, not even during peak demand.

Fines and other penalties were leveled against National Grid. National Grid was supposed to spend millions ... through development of renewable energy alternatives. Instead, the P.S.C. allowed National Grid to pay themselves that money for further infrastructure construction. Now, the P.S.C. has ignored unprecedented public comment and community involvement in the current rate case. What are we to think?

I’m sure the P.S.C. does not feel

responsible for the climate emergency, nor for the most vulnerable people affected. I'm sure the staff feels it's not within their scope to entertain those who clearly see the disaster already here. You are the adults in the room, moving the machine forward. The fact is, you are in the thick of it. You have a great deal of responsibility. We also feel responsible. That's why so many of us are here today. Where's the P in P.S.C.? The P.S.C. has not fulfilled its responsibility to the people of New York. They have secretly given National Grid what National Grid expected of them. This is a private deal. I am not a party to this deal and will not pay the portion of my gas bill awarded to National Grid by P.S.C., as a result of bad ... anti-democratic negotiations.

What sane -- what sane person would pay for the institutional denial, greed and just plain irresponsibility, in order to aid in our own destruction. I am hoping that we will soon have public power utilities before it's too late, responsible to more than the Governor as appointed Commission. Thank you very much.

A.L.J. LEARY: Thank you, Mr. Davis.

Next, I call Rose Davis. Ms. Davis, I don't see you. If you are calling in, please press star three on your telephone.

MR. WHITE: No raised hands, Your Honor.

A.L.J. LEARY: Pardon me?

MR. WHITE: I don't see any raised -- raised hands, Your Honor.

A.L.J. LEARY: Thanks. Next, I call Lyndsey Cooper -- Lyndsey Cooper -- Ms. Cooper. I see her listed.

MS. COOPER: Hi, can you hear me okay?

A.L.J. LEARY: Yes, Ms. Cooper. Please state your name for the record and you can proceed.

MS. COOPER: Sure, my name is Lyndsey Cooper and it's spelled L-Y-N-D-S-E-Y C-O-O-P-E-R and I'm here as a part of Mothers Out Front. We're an organization of 35,000 mothers and caregivers across the U.S., with multiple chapters here in New York State, throughout Brooklyn, Long Island, Westchester, Central New York, Rochester, the Adirondacks and more.

I'm here representing our Brooklyn

team, specifically Bushwick and I'm joined by a few other members of our team here and Billii Roberti, leader on our Long Island team. I'm also here as a resident of Bushwick and in Bushwick, we're already fighting some of the highest Asthma rates in New York, we're fighting hunger and homelessness, sanitation issues, gentrification, polluted air and waterways and the Pandemic has only intensified a lot of these issues. So, to now ask parents to fund the North Brooklyn Pipeline from our own pockets, is asking us to pay for the very thing that will negatively impact our children's future. And, this is not an upgrade for the public and we won't agree to it.

As a mother's organization, we fight for the best possible future for our children and that means fighting for a future where our kids have a livable climate. New York is a climate leader in the U.S. and we have a responsibility to set a positive example, by rejecting this rate hike and the North Brooklyn Pipeline.

Instead of charging us to expand the same old outdated, destructive energy systems, we need to make renewable energy a priority, no matter

how hard the decision might be. Now is the perfect time for us to move forward with meeting our climate goals as a State and this is an opportunity to show that we're leaders ... who are not willing to continue investing in what's destroying us.

We ask that you listen to the voices of all the activists, organizations and individuals present on this call because we represent not only ourselves but also those who couldn't be with us here today, who are in solidarity with us. Thank you so much for your time.

A.L.J. LEARY: Thank you, Ms. Cooper. Next, I call Billii Roberti. Billii Roberti, your line has been unmuted. Please state your name for the -- and spell your name for the record. Actually, your line has been re-muted. Mr. White, can you unmute -- there you go.

MS. ROBERTI: Thank you. My -- my name is Billii Roberti, B as in boy, I-L-L-I-I Robert, R-O-B-E-R-T-I like Robert with and I live in Huntington Station. I'm speaking today as a member of Mothers Out Front. Thank you for this opportunity to speak to the Public Service Commission hearing on the National Grid KEDNI and KEDLI joint proposal.

Not only am I an energy efficiency and renewable energy consultant, I am also a founding and active member so the New York Geothermal Energy Organization, NYGEO and also a member of the Town of Huntington Advisory Committee on energy efficiency, renewables and sustainability and a member of the Mothers Out Front New York State Leadership Team.

I am concerned that this National Grid joint proposal is flawed and not in the best interest of the customers or New York State residents as a whole. It certainly does not consider our children and their future, in a world of higher temperatures and greater weather and climate instability, as we're experiencing recently.

We have just been told that stakeholder comments were heard in developing this proposal. Heard maybe but not headed. We ask that National Grid's exaggerated long term capacity estimates, should not be used to justify continuing business as usual. National Grid should not be allowed to raise the gas rate, to extend the North Brooklyn Pipeline to Greenpoint, at a cost of 100 million dollars. The pipeline construction must stop. The communities affected have protested, even

through the Pandemic and yet it continued. There is no need for this pipeline to the Greenpoint facility or to expand it or the Long Island gas facilities. These will be stranded assets in 30 years or less.

National Grid should not be allowed to implement one more pipeline alternative, to truck, compress natural gas and possibly liquefied natural gas from Greenpoint across Long Island on highways and local roads. This is a dangerous alternative. National Grid should not be building more ... and service pipelines to bring in new customers at the expense of current ones.

National Grid should use rate increases for energy efficiency and renewable programs only. National Grid should be required to report on the cost of 100 foot subsidy. The rule provides free infrastructure to new gas customers. It clearly tilts the market playing field against alternatives, cleaner more efficient alternatives, such as ground source and air source heat pumps.

This plan should address the greenhouse emission reduction goals mandated by the Climate Leadership and Community Protection Law. It must comply with this law. More importantly, gas

utilities should be allowed to phase out the gas delivery system and replace it with a thermal energy delivery system, also known as a community heat pump system. This is a district wide, underground loop system that is used with an efficient electric heat pump. This change will require legislation but changing the business model, is probably the only way for any gas utility to stay viable in the second half of this century. Until they're allow to do this, gas utilities will continue to be the problem, rather than a solution to the climate crisis. Thank you.

A.L.J. LEARY: Thank you, Ms. Roberti. Next, I call Sara Youngtaugh -- Sara Youngtaugh. Mr. White, I don't see her on the list, so I'm going to ask if you are, Ms. Youngtaugh, participating by telephone, please press star three. Okay.

MR. WHITE: I don't see her either.

A.L.J. LEARY: Yeah, next I call Randy Peers -- Randy Peers. I see him on our list Mr. White.

MR. WHITE: There we are, thank you. The phone is unmuted.

MR. PEERS: Okay. Okay. Great, thank you. I appreciate it. Thanks for the opportunity.

Randy Peers, P-E-E-R-S. I'm President and C.E.O. of the Brooklyn Chamber of Commerce, the organization I'm representing today. Thank you for having me.

With over 2,000 members, the Brooklyn Chamber is one of the largest business associations in New York State. This past year, we've been focusing our efforts on the Pandemic response and business recovery and we have been charged with assisting all of Brooklyn's 62,000 small businesses, regardless of their membership status.

One of the overall goals -- our overall goal, is to support long term economic growth and job creation in the Borough, a mission that we've carried out for 103 years. Now, nobody likes utility rate increases and our members are no different. However, what commercial businesses dislike even more, is unreliable gas and electric service. There is general alignment with the -- within the business community in Brooklyn, with New York State's overall goal to achieve significant greenhouse gas emissions through the widespread adoption of renewable energy. National Grid also believes in these goals and much of the next decades, will focus on the transition to clean energy.

The modest rate increase proposed, will help ensure that a safer more efficient gas delivery system throughout Brooklyn and Long Island, will be -- will occur through modernization. Hundreds of miles of leak resistant gas main installation will -- in the overall delivery system and the rate -- and, the rate allowances in -- sorry, the rate credits in the millions will be provided to offset costs to customers in need.

It is important to note, the Brooklyn Chamber of Commerce is also proud to partner with National Grid on many economic and community development initiatives. As part of the rate increase, increased economic development funding will help continue our existing program, including the Cooperative Business Recruitment Grant Program, that the Brooklyn Chamber used for the innovation closed marketing campaign.

In addition, National Grid will be revamping our area development rate. The area development rate, will offer new businesses taking over long term vacant spaces in industrial business zones, ... opportunity areas and opportunity zones, a five year discount on their delivery charges.

Lastly, I can personally attest to National Grid's commitment to supporting small businesses through COVID recovery. I, myself, have conducted over 36 commercial corridor tours since phase one reopening last year and on many of these tours, National Grid officials have joined me to hear the -- to hear firsthand, the challenges our businesses are facing.

In sum, these rate increases are very modest in the context of the enormous transition and change, we will be undertaking over the next few decades. As such, we understand the need and we endorse this modest request, to put forth -- put forth by our partners at National Grid. Thank you very much.

A.L.J. LEARY: Thank you very much, Mr. Peers. Next, I call Joseph Guarinello. Joseph Guarinello, you are listed. We're going to unmute your line.

Mr. White, are you able to unmute Mr. Guarinello -- there you go, Mr. Guarinello, you are unmuted. You can proceed with your statement. You may -- we cannot hear you, if you are there.

MR. GUARINELLO: How about now, can

you hear me now?

A.L.J. LEARY: Yes.

MR. GUARINELLO: Hello. Okay. Joseph Guarinello, G-U-A-R-I-N-E-L-L-O and I am representing Heart Share Human Services. That's two words, Heart and Share Human Services, a 107 year old social service agency, servicing people in Brooklyn, Queens and Staten Island.

Heart Share for the last 30 years, has worked with National Grid in providing energy assistance to the tens of thousands of economically stressed households. This program usually ends in April but because of the COVID Pandemic, National Grid has continued to support additional savings and fund actual grants to economically stressed households. And, as Mr. ... pointed out, we are now experiencing many more households that have ever come before for assistance because they are facing economic burdens.

So, I realize that green is the way to go but it's not going to go very quickly. And, I think that anything that can be done to make the system more efficient, is very, very important. And, I can attest to the fact that I've seen National Grid

step forward for those economically stressed families and increase their support in different programs, so that they would not be affected by the increases. So, then we support -- and there are 25 additional social service agencies throughout the service territory, that join me each and every year, in providing these funds -- assistance. So, we are in support of it. Thank you.

A.L.J. LEARY: Thank you very much. Next, I call Avni Pravin -- Avni Pravin, your line has been unmuted. You can proceed to state your name for the record.

MS. PRAVIN: Sure, it's Avni Pravin, A-V-N-I, last name P-R-A-V-I-N. Thank you for the opportunity to speak on this joint proposal today. My name is Avni Pravin and I'm the Deputy Policy Director for the Alliance of a Green Economy and our organization has been a party to this case since June of 2020.

We strongly oppose this proposal for a number of reasons but it should be noted that we are also in strong opposition to the very process that has allowed a joint proposal, with so many problematic elements, that has come to fruition. I

find it interesting that the companies are allotting this process as a success, when a number of parties walked out of the case, due to the undemocratic way that the negotiations were being conducted.

This process has also dragged on since the rate case first began in April of 2019. We're already in rate year two of this joint proposal, which means that we've lost a whole year during which the company could have been implementing programs we actually want, like energy efficiency, demand response and beneficial electrification.

Perhaps more infuriating, is that the Company has taken advantage of the lagging timeline and obscurity from the confidential nature of these settlement discussions, to go ahead with the construction that was not yet approved. National Grid has already spent at least 129 million dollars on the North Brooklyn Pipeline, all before the Public Service Commission even decided whether or not to even allow the companies to move ahead with building that gas infrastructure in this rate case.

And, lastly but certainly not least on the subject of process, all throughout these closed door negotiations, the public was loud and united

about one very big ... we did not want or need new fossil gas infrastructure. Members of the public submitted over 9,000 comments and attended virtual public hearings during the peak of the COVID-19 Pandemic in New York City, all saying that they supported renewable energy alternatives and reduction of gas use, rather than new infrastructure. It is unconscionable, that the Department of Public Service, the Public Service Commission and the companies, would ignore such resounding feedback from the public, which they are supposedly committed to serving.

Regarding the actual content of the proposal, we strongly oppose the rate hike and the gas infrastructure the Company is proposing because it will have incalculable, negative effect -- effects on low income families and our future. The Companies want to impose this rate hike on every single ratepayer, regardless of financial circumstance or how they have been impacted by the Pandemic. Utility shareholders have profited from the Pandemic. They made money while the rest of us got sick, lost jobs, lost parents, children and friends, were evicted, ... medical debt, went hungry. They made money and now

we are being expected to pay more money for infrastructure that will kill any chance we have at reaching our climate goals.

There is damming evidence that methane is terrible for the climate and that burning it is terrible for our health. A member of cities worldwide, have taken the forward thinking steps to end gas investments to protect their citizens. Why is New York supposedly a leader on climate issues, refusing to take action? Why are regulators complicit in the continued pollution and poisoning of our air and lungs? I lived for the first 18 years of my life in New York. As a young person, I saw New York be the first to do a number of important things, like banning fracking. I grew up with the understanding that climate change is already creating dire consequences for our people and our planet and with the urgency that we need to act now and we need bold action. I decided at 20, that I would never have children because I saw corporations like KEDNI and KENLI, time and time again, make promises that they didn't fall through -- follow through on or just blatantly steamroll on activists and scientists.

As I read the joint proposal and as I

see the comments of dedicated members of the public fighting for their lives, being brushed aside by the companies, I reflect on that decision and I know it was the right one for me and plenty of young people in the next generation are taking this pledge as well because they know that companies like National Grid, are killing their hopes for a livable future. The Company wants to frame this as a small step forward but this is multiple steps backward, both for our climate and for the advancement of ... public process. Thank you.

A.L.J. LEARY: Thank you. Our next call, Elizabeth Ores. Ms. Ores, I don't see you listed. If you are a call-in user, please press star three. Next, I call Brian Cavanaugh. Again, I do not see you listed. Please press star three if you are a call-in user. Okay. Next, I see Paulina Riavoba. Paulina Riavoba, I don't see you on my list. Please press star three if you are a call-in user. Next, I call Douglas Morrow. Douglas Morrow, same instruction. I don't see you on my list. Okay. Next, I call Lee Ziesche from SANE Energy. Ms. Ziesche, I see you listed. Your line has been unmuted. Please state and spell your name for the

record and you can proceed with your public comment.

MS. ZIESCHE: Thank you. My name is Lee Ziesche, L-E-E Z as in zebra I-E-S-C-H-E. I'm an organizer with SANE Energy Project but more importantly, I am a resident of Bed-Stuy, Brooklyn and a National Grid customer. I thought it was very interesting that Mr. Diseeko talked about compromise because that's exactly what I wanted to talk about. When we first entered into this rate hike case, somebody from the Department of Public Service Staff said to me before the first settlement meeting, you know, it's all about compromise. And, what I said to him is, there is no compromise when it comes to climate science. And -- and, that's just the facts. You know, this is about physics and it's about there are certain numbers that we have to meet and this plan just literally spits in the face of those.

The other thing that doesn't compromise, is public health. And, you know, every report that is coming out, is just saying how bad gas is, to be burning in our homes and how bad gas infrastructure is for our communities. This other thing that does not compromise and we cannot compromise on, is environmental justice. The

proposals for the Greenpoint L.N.G. facility, the North Brooklyn Pipeline, these are all environmental justice communities, that have been at the losing end of compromise for their entire existence.

And -- and, time does not compromise. We literally only have nine years left to meet the goals that climate science tell us. So, when Mr. Diseeko said, you know, in three years that we can maybe file a nice piece of work, that is just completely unacceptable. We cannot waste any more time studying the future. We know what needs to be done and that is stopping fracked gas infrastructure and dramatically reducing gas use. The Company is spending far more money extending the life of infrastructure and expanding capacity, then they're remotely spending on energy efficiency or their demand response.

And so, you know, when National Grid says, this isn't business as usual, that's just simply not true. And, the only people wo have actually shifted business as usual, has been the community because it's been the community that literally put their bodies on the line and halted construction, which is the only reason phase five has

even been paused but it shouldn't be on the table, at all. And, we shouldn't reward the Company for stretching out this case for years, while they continue to build opposed infrastructure.

So, I am urging the P.S.C. to deny the 129 million dollars that National Grid is expecting us to pay back for what they spent in 2020 and 2021. But, if you all continue business as usual, the public simply will not. So, as a National Grid customer, I am joining the gas bill strike. I am withholding 66.00 of my bill and I will never, ever pay for this pipeline and I am talking to dozens of community members who are doing the same. So, you can talk about these very small incremental changes and these studies as not doing business as usual but the communities' vision of what is not business as usual, we will have it no matter what. And, so I just encourage you to please listen to the public and we are watching which elected officials are standing with us and we will change business as usual. Thanks so much.

A.L.J. LEARY: Thank you. I next call Paul Corell. Mr. Corell, I see you listed. You line is unmuted. You can proceed with your statement

after -- please -- stating and spelling your name for the record.

MR. CORELL: Hello, my name is Paul Corell, P-A-U-L, second name Corell, C-O-R-E-L-L and I'm the Vice Chair of Shutdown Indian Point Now, which just achieved in the two months, a final shutdown in all the plants degrading our Hudson Valley, near Garrison, New York.

Aside from that aspect of our platform, we also want to emphasize that we're for renewables and we support the ongoing attempts to switch from a gas, particularly a fracked gas future, to -- to renewables. We oppose the plan in all its aspects, the pipeline extensions and also the rate hike. And, we would like to also go on record, that we would definitely have more discussion about this, if not total denial of the rate hike because we feel that any rate hike only acts as an incentive to National Grid, to continue its attempts to ... the charges off of their ... project onto the public.

So, that's about it and, you know, like I said, we go on -- on record as being opposed to this development. Thank you.

A.L.J. LEARY: Thank you very much,

Mr. Corell. I next call, Delia Kulukundis. Ms. Kulukundis, I did see you on my list and your line has been unmuted. Please state and spell your name for the record and you can proceed with your statement.

MS. KULUKUNDIS: Hi, I'm Delia Kulukundis. My name is spelled, D-E-L-I-A K-U-L-U-K-U-N-D-I-S. I am a resident of Long Island City. I'm asking you to please reject National Grid's proposal to raise gas rates to pay for the North Brooklyn Pipeline and the expansion of fracked gas projects that connect to it, including the L.N.G. Facility in Greenpoint and the compressed natural gas facilities on Long Island.

During these hearing, I know you're going to hear from so many people who live along the pipeline route and close to the L.N.G. and C.N.G. facilities, people who have enough air pollution in the neighborhoods and rightly don't want any more. But, this message is for anyone who might not actually care about air pollution in those neighborhoods. I'm here to tell you that it will affect you personally.

Research from the University of

Massachusetts Amherst, has shown that cities with higher levels of racial segregation, have higher levels of air pollution overall. This happens because of the mistaken belief that it's possible to shift the burden of pollution onto others. So, instead of requiring clean alternatives, local and State governments allowed polluting industries and infrastructure to be built in black and brown neighborhoods. So, everyone ended up with dirtier air.

As it turns out, there is a no peeing section of the pool. If you want cleaner air, stop trying to shunt polluting facilities onto black and brown neighborhoods. And, we all want cleaner air. In every neighborhood, everyone knows someone who has Asthma or whose child has Asthma. And, now unfortunately, we all know someone who suffered from COVID-19. Many of those who died, might have had a better chance of surviving COVID, if they'd been breathing cleaner air their entire lives.

So, that golden rule of do onto others, really applies well here. If you wouldn't want it in your own backyard, you shouldn't put it in someone else's backyard. And, if you wouldn't put it

in your own backyard, you certainly shouldn't ask someone to pay to put it in their own backyard.

Approving this rate hike, would reward National Grid for the reckless strategy of build first, ask permission later, which is especially egregious when it comes to infrastructure that contradicts New York's Climate Law.

National Grid may tell you that it needs to raise rates to deliver gas to its customers but right now, we have a chance to produce the amount of gas needed by everyone, instead of building new gas facilities that will soon become obsolete.

So, let's go back to that rule of thumb I just described and invest in infrastructure that anyone would want, like heat pumps and weatherization, as a start. So, if you're moved by the testimony of the people speaking out against the expansion of polluting infrastructure in their own neighborhoods, I appeal to your blatant self-interest. Stop trying to shunt pollution on to others because it will just lead to more pollution that you will breathe. Reject the rate hike. Thank you.

A.L.J. LEARY: Thank you. I next call

Shannon Boyle. Ms. Boyle, I see you on my list. Your line has been unmuted. Please state and spell your name for the record and you can proceed with your statement.

MS. BOYLE: Hi, this is Shannon Boyle. Can you hear me?

A.L.J. LEARY: Yes, we can hear you.

MS. BOYLE: Great. My name is Shannon Boule, S-H-A-N-N-O-N, last name B as in boy O-Y-L-E. I'm here to speak in support of National Grid's case. I am the Executive Director of New Ground. We are a 501(C)(20) non-profit organization, working with homeless families and Veterans on Long Island.

I'm here in support of National Grid's rate increase request, specifically of the low and moderate income families and Veterans that we work with. We have seen, first hand in our work directly with National Grid, how great their energy affordability programs are. For low and moderate income households, gas is simply more affordable than oil for heat and those are really the only two options, at this time.

They have a 12 month payment plan with National Grid, that is user friendly for our clients

and even applying for social services, HEAP assistance and other resources, is much easier for our clients with National Grid, than trying to secure reimbursement if they are on oil heat.

Personally, I'm a National Grid customer and professionally, New Ground is also a National Grid customer. At this time, I do feel that a rate increase is affordable for some of us on Long Island, to help support those who can't afford it on Long Island. Through National Grid's Affordability Program, those who can't afford it have asked us to ... affordable heat options and discounts. That is critical and we need to see more of that.

We have families in housing that would like to be eligible for gas service and if it's no longer available because gas isn't available, oil heat will not be an affordable option. They will be forced to make difficult decisions between heat versus food versus medical needs versus daycare, transportation and many other expenses.

These are not decisions they should have to make. National Grid is doing great work to try and keep costs affordable to the lowest incomes around us and we need to be able to continue to

access that resource. Thank you.

A.L.J. LEARY: Thank you. I next call Jonathan Goodwin. Mr. Goodwin, I do not see you on my list, so if you are a call-in user, please press star three on your keypad, so we can recognize that you are present. Okay. Next, I call Jaime Lutz. Jaime Lutz, I see you on my list. Your hand is raised. We will unmute your line. Give us a moment. You are now unmuted. Please state and spell your name for the record, then you can proceed with your statement.

MS. LUTZ: Okay. My name is Jaime Lutz. That's J-A-I-M-E L-U-T-Z and I live in Greenpoint in Brooklyn. First of all, National Grid's unprecedented set of proposals to reduce emissions, as you put it earlier, are insufficient under New York State's Climate Law and Local Law 97 and I think if they are honest, they know that demand side solutions will not be enough.

I -- I strongly oppose this rate hike. While I live in the neighborhood where National Grid is planning to ... me and my family ... North Brooklyn Pipeline, it is a project that makes working families less safe and then ask these same families

to foot the bill for it. Investing in this pipeline goes against our State's Climate Law and national climate goals and these projects will quickly become expensive stranded assets. It makes no sense to put us on the hook for new long-term capacity projects, just because National Grid is building them against the will of the community who lives here.

I'm asking P.S.C. and Governor Cuomo to reject any rate hike that forces customers to pay for the deeply unpopular North Brooklyn Pipeline, L.N.G. in Greenpoint and C.N.G. on Long Island through surcharges. Thank you.

A.L.J. LEARY: Thank you. Next, I call Maria Casper. Maria Casper, I don't see you on my list, so if you are calling in, please raise your hand -- I'm sorry, please hit star three on your telephone. Okay. Next, I call Sari Carel. Sari Carel, again you're not on my list. If you're calling in by phone, please press star three. Next, I call Crystal Smith Hosban. Crystal Smith Hosban, if you're calling in by phone -- I have a call-in user 29, Mr. White. If you could unmute 29, it's probably someone I just -- so, call-in user with the hand raise, can you state your name?

MS. CAREL: Hi there. Thank you for unmuting me. My name is Sari Carel, S-A-R-I, last name C-A-R-E-L.

A.L.J. LEARY: Go ahead, you can proceed.

MS. CAREL: Thank you -- thank you for the opportunity to speak. I'm a resident of Brooklyn. I'm a National Grid customer. I am a mother of two girls who go to a public school mere blocks from the pipeline. I'm also a small business owner right here in Brooklyn.

A few years ago, I was surprised and I went on to learn, that was ... for National Grid, was actually a buildup of ... gas lines, so did my neighbors, my friends and my colleagues. So, I counter National Grid's statement, that this project was ... stakeholders. That is simply not the case but exactly the opposite.

The rate hike proposal fails to serve the public. New Yorkers already have a really tough time paying their utilities and heating and cooling their homes, even more so now with COVID-19. How and why are you prepared to ask us to pay even more for an infrastructure project that further locks us into

fossil fuels and demolishes our children's chance for a better future.

Please tell me and my fellow New Yorkers, how can you possibly frame this as just or ... as sustainable? Thanks very much.

A.L.J. LEARY: Thank you. Again, I'm going to call Crystal Smith Hosban. If you are a call-in user, please press star and -- and by the way, Ms. Carel, would you please press star three on your phone again, so that will take you hand down -- the raised hand that is -- perfect, thank you very much. Crystal Smith Hosban? Okay. I'm now going to go over the list again, just to make sure we haven't missed any registered speakers who did not participate when I called your name. Again, if you are a call-in user, please press star three when I call your name. Alexis Kearns? Gwen O'Shea? Teddy Molesknower? Sandy Rens? Nasir Nicholas? Rose Davis? Sara Youngtaugh? Elizabeth Ares? Brian Cavanaugh? Paulina Riavoba? Douglas Morrow? Maria Casper? Crystal Smith Hosban? Okay. I want to get an idea if there are people still participating on the attendee list. If anyone has not made a statement yet but would like to make a statement,

please press star three on your telephone or use the raised hand function at the lower right corner of your computer. So, I see --

MR. WHITE: Your Honor, Andrew -- Andrew Epstein has joined us.

A.L.J. LEARY: Yes, Mr. Epstein, let's unmute your line and I'll ask you to proceed with your statement after spelling your name for the court reporter.

MR. EPSTEIN: Thank you, Your Honor. My name is Andrew Epstein, E-P-S-T-E-I-N and I am Chief of Staff to Assembly Member, Emily Gallagher. She represents Greenpoint, Williamsburg, Navy Yard, parts of Clinton Hill in the New York State Assembly and I am here on her behalf to express her profound frustration and total opposition to this rate hike and the fossil fuel infrastructure and private profits that it will support.

I don't know how this community or North Brooklyn or Brooklyn entirely, could be more clear. Elected officials, community members, environmental watch dogs, we have been vocally opposed to this pipeline, which is dangerous and cuts through some of the most disinvested and polluted

neighborhoods in Brooklyn, terminating in our district of Greenpoint, which is still digging its way out of centuries of environmental degradation and toxic industrial legacy. The science could also not be more clear. We are on the brink of catastrophic failure, when it comes to holding climate change to survivable levels.

The U.N. Intergovernmental Panel on Climate Change, determined unequivocally, we now have less than a decade to keep warming to 1.5 degrees above pre-industrial levels and preserve the conditions for life on this planet. They say and this is their words, we require a quote, rapid and far reaching transformation of our entire way of life, including and most profoundly our energy system, in order for human civilization to continue.

I think in New York, we tend to think of climate change denial as something that other people do but building new fossil fuel infrastructure, at all, right now in this moment, is climate denial; full stop. And, our constituents and residents across Brooklyn, do not want to pay for climate denial. They do not want to pay for their own pollution. They do not want to pay to put

themselves in danger, from what we know are massively dangerous liquefied natural gas pipelines and infrastructure.

So, I am here on behalf of Assembly Member Gallagher to urge Governor Cuomo to urge the P.S.C. to reconsider and reject this rate hike for the North Brooklyn Pipeline and other fracked gas projects, that you are asking our constituents to pay for. We could not be more clear. We demand rapid and far reaching transformation of our energy system, in line with what the I.P.C.C. has determined, based on the science. Thank you.

A.L.J. LEARY: Thank you very much, Mr. Epstein. I'm going to recognize, Margot Spindelman. Ms. Spindelman, your hand is raised and we're going to unmute your line. I'll let you know when that happens. Okay. You're unmuted. Please state and spell your name for the record and you can proceed with your comment.

MS. SPINDELMAN: Thank you. My name is Margot Spindelman, M-A-R-G-O-T S-P-I-N-D-E-L-M-A-N. I live in Greenpoint and I'm a homeowner and a ratepayer. The transition to renewal energy in New York City, is such a colossal and intimidating

project, that I am not surprised that the Public Service Commission is opting in this joint proposal, to as Lee Ziesche has blisteringly pointed out, continue business as usual.

As we move to get off gas, every single building in New York City will need to be evaluated; every single building. Recently, New York City released a report called, Pathways to Carbon Neutral, N.Y.C., which despite its many flaws, attempted to focus on ways forward. When discussing need, the report says, that gas demand is projected to fall in New York and all pathways by more than 60 percent between 2020 and 2050. This is confirmation that gas ... despite National Grid's inflated claims, it can be met increasingly with renewable solutions.

In spite of the report's misguided focus on hydrogen and R and G, the report does attempt to grapple with the enormous task at hand. Contrarily, this joint proposal reflects very little of the urgency that is encapsulated in the City's report. In fact, they're in support of the joint proposal. They refer to the long term capital capacity projects, including the ... at the Greenpoint L.N.G. facility, saying quote, the

Company's asserted that these projects are necessary. They continue, Staff also included these projects in its recommended capital expenditure budget. This reflects Staff's judgment that the projects are indeed needed. We hear them echoing National Grid.

Also, when referring to the new position of the quote, independent consultant to whom they have ceded much of their decision making responsibility, they say that the independent consultant will be working at the direction of Staff. I am really confused about this convoluted relationship between an independent consultant, with decision making responsibilities, assessing need, directed by Staff, who have already determined that the long-term capital capacity projects are needed because National Grid said so.

What other outcome would we expect, other than the confirmation these fossil fuel expanding projects ...? ... disputed by many reports and the City, itself. Even after the C.L.C.P.A. says we must drastically reduce greenhouse gas emissions. Staff also notes ... that since they are not responsible for permitting nor licensing of the long term capital capacity projects, their role is only to

authorize ... recovery. Essentially, they say, not on us, even though they are the ultimate gateway through which these projects must pass.

I know that National Grid will say or do anything in their last gas and last laugh attempts to ... every last dollar out of all of us, on their failed C.L.C.P.A. mandated way out the door. But, to think as a responsibility to lead us to decarbonization and net zero, not to be led by a global corporation, whose primary concern is their own survival. Because I have no faith that the P.S.C. will step up to meet the challenges of this climate emergency, I am joining the gas bill strike, to speak the only language both they and the companies understand. Withholding payment is maybe the only way left to protect us from paying a far larger price.

A.L.J. LEARY: Thank you, Ms. Spindelman. I'm going to ask that you lower your raised hand please and next, I'm going to call Shelby Garner. Shelby Garner, your line will be unmuted. It is unmuted now and you can proceed with your statement after spelling your name for the record.

MR. GARNER: Hi, my name is Shelby

Garner. I'm -- S-H-E-L-B-Y G-A-R-N-E-R and I am presenting testimony on behalf of Congresswomen, Carolyn Maloney. I would like to thank the New York State Department of Public Service, for allowing me to present testimony today. I strongly believe that the New York State Public Service Commission should reject the rate increase proposed by ... doing business as National Grid New York, which would finance the construction of additional fossil fuel infrastructure.

These projects include installation of two liquefied natural gas vaporizers at the Greenpoint Energy Center, located at 287 Maspeth Avenue, which is in the 12th Congressional District ... ... to meet the current or future needs of the customers, National Grid New York is proposing to burden us with higher gas rates. Many of these ratepayers live in communities that are still dealing with the economic distress caused by the COVID-19 Pandemic.

As we continue to work as a City, State and Nation to address the dire environmental crisis of climate change, I find the idea of these massive investments in infrastructure and

technologies, which must be progressively phased out of use, ... misguided and ...

Fundamentally, our communities have long been burdened with the toxic legacy of our Nation's industrial past and I don't believe that this is the time to economically burden them further with the cost of doubling down on ... infrastructure.

I had hoped the P.S.C. will take these concerns into consideration and reject the proposed gas rate increase, consistent with all applicable rules and regulations. Thank you.

A.L.J. LEARY: Thank you, Mr. Garner and thank you for putting your raised hand down. I next call Susan Albrecht. Susan Albrecht, your line has been unmuted. Please proceed to state and spell your name for the record and provide your comment.

MS. ALBRECHT: Yeah, my name is Susan Albrecht, A-L-B-R-E-C-H-T. I am a resident of Greenpoint Brooklyn. The Greenpoint community has suffered from decades of pollution. Thirty million gallons of oil leaked from local refineries into the soil, toxic waste has contaminated the New Town Creek and we are inundated with truck -- truck traffic. I feel passionate that large scale energy

infrastructure investments should not be in climate damaging projects, like the North Brooklyn Pipeline.

Customers should not be forced to pay for the North Brooklyn Pipeline, a project that fails to serve the public interest, harms our environment and refuses to recognize the science that shows the disastrous impacts of fracked gas. What we need is leadership, to make true fundamental capital changes, to create sustainable and climate friendly projects and not just the exploration of policies.

For the sake of my children, the climate and the future of our planet, I ask the Commission and the Governor to oppose this rate hike and truly work towards initiatives that are meaningful and capital projects that are sustainable and environmentally responsible. Thank you.

A.L.J. LEARY: Thank you very much, Ms. Albrecht. I am going to again, ask if -- last call if anyone who is in attendance would like to provide a public comment, kindly raise your hand using the raised hand function on WebEx or press star three on your telephone keypad.

Okay. Not seeing anyone, I want to thank all of you for attending the public statement

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hearing. Many thanks to Commissioner Burman for her attendance and to Judge Costello and also to our host from the Department's Office of Consumer Services, Joe White and Jill Wasser and to our stenographer, Ms. Becky Foster.

Please remember everyone, there are other ways to comment but the comments should be received within the next 30 days. Those unable to attend the hearing, have the continuing opportunity to comment. On your screen, you can see those three options, email to secretary@dps.ny.gov, by telephone, 1-800-335-2120 or by electronically filing your comments in this case. The Case Numbers are 19-G-0309 or 19-G-0310. Again, thank you everyone for your participation. Tonight's session will begin with the information portion of the program at six o'clock and the public statement hearing will be held at seven. We are off the record. Thank you.

(The proceeding concluded at 3:29 p.m.)

STATE OF NEW YORK

I, BECKY FOSTER, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 61, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 16th day of June, 2021.

BECKY FOSTER, Reporter